



# Your policy schedule

## Technology companies professional insurance portfolio

The details of the insurances in this Policy Schedule are intended as a concise overview for a quick and simple reference only. It contains only the main limits, sums insured, endorsements and excesses but others may apply and will be detailed in the Policy Document. Reference should be made to Your Policy Document for the full extent of the insurance cover provided and full policy terms and conditions.

Please take care to review all documentation to ensure that the information provided accurately reflects Your circumstances and that the cover provided suits Your requirements. You should pay particular attention to any Terms, Conditions, Limits and Exclusions including Endorsements which may require You to take action.

It is understood and agreed that the insurers' liability shall not exceed the limits of liability expressed in the Policy Schedule or Policy Document or such other limits or liability as may be substituted by memorandum hereon or attached hereto signed by or on behalf of Underwriters.

### Fair Presentation of Risk

You have a duty to make a fair presentation of the risk which You wish to insure. This applies prior to the start of Your Policy, if any variation is required during the period of insurance and prior to each renewal. If You do not comply with this condition then

1. If the failure to make a fair presentation of the risk is deliberate or reckless we can elect to make Your Policy void and keep the premium. This means treating the Policy as if it had not existed and that we will not return your premiums, or
2. If the failure to make a fair presentation of the risk is not deliberate or reckless and we would not have provided cover had you made a fair presentation, then we can elect to make your policy void and return your premium or
3. If the failure to make a fair presentation of the risk is not deliberate or reckless and we would have issued cover on different terms had You made a fair presentation of the risk then we can:
  - a) reduce proportionately any amount paid or payable in respect of a claim under Your Policy using the following formula. We will divide the premium actually charged by the premium which we would have charged had you made a fair presentation and calculate this as a percentage. The same percentage figure will be applied to the full amount of the claim to arrive at the proportion of the claim to be paid or payable and/or
  - b) treat Your Policy as if it had included different terms (other than payment of the premium) that we would have imposed had you made a fair presentation.
4. Where we elect to apply one of the above then
  - a) if we elect to make Your Policy void, this will be from the start of the policy, or the date of variation or from the date of renewal
  - b) we will apply the formula calculated by reference to the premium that would have been charged to claims from the start of the policy, or the date of variation or from the date of renewal
  - c) we will treat this Policy as having different terms imposed from the start of the Policy, or the date of variation or from the date of renewaldepending on when the failure to make a fair presentation occurs.

Policy number  
**P-POR-FL-0021826**

Policy wording  
**ACLD1093P-D (04/21) (363531)**

#### Your details

Insured name: Element Softworks Ltd

Address: Knowledge Gateway, Boundary Road, Colchester, CO4 3ZQ

Business description: App Development, Web Design

#### Your Total Premium

Premium: £2,462.02

Insurance Premium Tax (IPT) at the current rate: £295.44

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Total amount payable: £2,757.46

#### Your period of insurance

Date this cover starts: 04/06/2026

Date this cover expires: 03/06/2027

Renewal date: 04/06/2027

## Your cover summary

| Section                             |               |
|-------------------------------------|---------------|
| Professional indemnity              | ✓ Insured     |
| Property damage                     | ✗ Not insured |
| Business interruption               | ✗ Not insured |
| Money and personal accident assault | ✗ Not insured |
| Employers liability                 | ✗ Not insured |
| Public and products liability       | ✗ Not insured |
| Selected All risks                  | ✗ Not insured |
| Directors' and officers' liability  | ✓ Insured     |
| Employment practices liability      | ✗ Not insured |
| Company legal liability             | ✗ Not insured |
| Company legal defence costs         | ✗ Not insured |
| Terrorism                           | ✗ Not insured |
| Equipment breakdown                 | ✗ Not insured |

## Professional indemnity section

insured

### Section

|                        |                    |
|------------------------|--------------------|
| Basis of Limit         | £1,000,000         |
| Limit - Defense Costs  | Any one claim      |
| Excess                 | £2,500             |
| Excess - Defense Costs | Each claim or loss |
| PI Premium (Ex IPT)    | £2,109.37          |
| Retroactive date       | 03/06/2020         |

### Endorsements that apply to this section

#### IPI139 PI Cyber and data protection law endorsement (IT trades)

The following applies to the **Professional indemnity section** of **your policy**. This will apply irrespective of anything contained in **your policy** to the contrary

1. The following definitions are added to **your policy**

#### Computer system

Any computer, hardware, software, communications system, electronic device (including, but not limited to, smart phone, laptop, tablet or wearable device), server, cloud or microcontroller including any similar system or any configuration of the aforementioned and including any associated input, output, data storage device, networking equipment or back up facility

#### Cyber act

An unauthorised, malicious or criminal act or series of related unauthorised, malicious or criminal acts, regardless of time and place, or the threat or hoax thereof, involving access to, processing of, use of or operation of any **computer system**

#### Data

Information, facts, concepts, code or any other information of any kind that is recorded or transmitted in a form to be used, accessed, processed, transmitted or stored by a **computer system**

#### Data protection law

Any applicable data protection and privacy legislation or regulations in any country, province, state, territory or jurisdiction which govern the use, confidentiality, integrity, security and protection of personal data or any guidance or codes of practice relating to personal data issued by any data protection regulator or authority from time to time (all as amended, updated or re-enacted from time to time)

2. The following is added to **your policy**

#### Cyber and data protection law endorsement

1. Except as stated within this endorsement or by other restrictions in **your policy** specifically relating to the use of, or inability to use, a **computer system**, no cover otherwise provided by **your policy** will be restricted solely due to the use of, or inability to use, a **computer system**
2. **We** will not cover any **claim**, loss, damage, liability costs, expenses, fines, penalties, mitigation costs or any other amount directly caused by, directly resulting from or directly arising out of
  - a. a **cyber act**
  - b. denial of service or denial of access to any **computer system**  
provided the **computer system** is owned or controlled by **you** or any party acting on **your** behalf in either case, or
  - c. the receipt or transmission of malware, malicious code or similar by **you** or any party acting on

**your** behalf

3. **We** will not cover any of **your** own loss, damage, costs (other than legal costs incurred in the defence of actual or potential liability), expense, fines, penalties or mitigation costs directly caused by, directly resulting from or directly arising out of any partial or total unavailability or failure of any **computer system** owned or controlled by **you** or any other party acting on **your** behalf
4. **We** will not cover any **claim**, loss, damage, liability costs, expenses, fines, penalties, mitigation costs or any other amount directly or indirectly caused by, directly or indirectly resulting from or directly or indirectly arising out of any failure or interruption of service provided
  - a. to **you** or any party acting on **your** behalf by an internet service provider, telecommunications provider or cloud provider but not including the hosting of hardware and software owned by **you**
  - b. by any utility provider, but only where such failure or interruption of service
  - c. impacts a **computer system** owned or controlled by **you** or any party acting on **your** behalf
5. **We** will not cover any **claim**, loss, damage, liability costs, expenses, fines, penalties, mitigation costs or any other amount for actual or alleged breach of **data protection law** by **you** or any party acting on **your** behalf
6. Any cover provided by **your policy** in respect of the costs of reconstituting or recovering lost, inaccessible or damaged **documents** owned or controlled by **you** or any party acting on **your** behalf will not apply to **data**.

All other terms and conditions are unaltered.

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#### **IPI02 North America Territory and jurisdiction cover endorsement**

The following applies to **your policy**. This will apply irrespective of anything contained in **your policy** to the contrary.

The **North American jurisdiction exclusion** and **North American territorial exclusion** in **your policy** are deleted and replaced by the following.

#### **North American jurisdiction and territorial exclusion**

In relation to any action brought in the United States of America, its territories and/or possessions or Canada or any action brought elsewhere to enforce a judgment or finding of a court or other tribunal in the United States of America, its territories and/or possessions or Canada in which it is contended that the governing law is that of the United States of America or Canada **we** shall not be liable to indemnify **you** against any **claim**

1. arising from or arising out of the Employment Retirement Income Security Act of 1974, Public Law 93-496, commonly referred to as the Pension Reform act of 1974, and amendments thereto, or similar provisions of any Federal State or Local Statutory Law or Common Law
2. arising from, directly or indirectly caused by, or contributed to by, any actual or alleged violation of the Racketeer Influenced and Corrupt Organisations Act, 18 USC Sections 1961 et seq., and any amendments thereto, or any rules or regulations promulgated thereunder
3. arising from any actual or alleged violation of any of the provisions of the Securities Act of 1933, the Securities Exchange Act 1934 or any similar Federal or State Law or any Common Law relating thereto
4. arising from fines or penalties or punitive or exemplary or multiple damages or for taxes or levies or imposts or duties
5. based upon, arising out of or relating directly or indirectly to, in consequence of or in any way involving seepage, **pollution** or contamination of any kind
6. arising directly or indirectly out of or resulting from or in consequence of or in any way involving
  - a. **asbestos** or any materials containing **asbestos** in whatever form or quantity

- b. the actual, potential, alleged or threatened formation, growth, presence, release or dispersal of any fungi, moulds, spores or mycotoxins of any kind
- c. any action taken by any party in relation to the actual, potential, alleged or threatened formation, growth, presence, release or dispersal of (to include the investigation of, testing for, detection, monitoring, treating, remediating or removal of) any fungi, moulds, spores or mycotoxins of any kind whether in response to any governmental or regulatory order, requirement, directive, mandate, decree or otherwise.

In the event of any dispute as to whether or not this exclusion applies you shall have the burden of proving that this exclusion does not apply.

In relation to any action brought in the United States of America, its territories and/or possessions or Canada or any action brought elsewhere to enforce a judgment or finding of a court or other tribunal in the United States of America, its territories and/or possessions or Canada in which it is contended that the governing law is that of the United States of America or Canada

1. the most **we** will pay in total for all **claims, defence costs, loss**, claimant's costs, fees, expenses or any other costs arising in any one **period of insurance** is the **limit of indemnity** of £1,000,000.
2. the **excess** of £5,000 does apply to **defence costs**

All other terms and conditions are unaltered

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|--------------------------------|--------------------|
| <b>Property damage section</b> | <b>not insured</b> |
|--------------------------------|--------------------|

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|                                      |                    |
|--------------------------------------|--------------------|
| <b>Business interruption section</b> | <b>not insured</b> |
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|                                                    |                    |
|----------------------------------------------------|--------------------|
| <b>Money and personal accident assault section</b> | <b>not insured</b> |
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|------------------------------------|--------------------|
| <b>Employers liability section</b> | <b>not insured</b> |
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|                                              |                    |
|----------------------------------------------|--------------------|
| <b>Public and products liability section</b> | <b>not insured</b> |
|----------------------------------------------|--------------------|

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|-----------------------------------|--------------------|
| <b>Selected All risks section</b> | <b>not insured</b> |
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|                                                   |                |
|---------------------------------------------------|----------------|
| <b>Directors' and officers' liability section</b> | <b>insured</b> |
|---------------------------------------------------|----------------|

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| Section                            | Limit of indemnity | Excess     |
|------------------------------------|--------------------|------------|
| Directors' and officers' liability | ✓ covered          | £1,000,000 |
| D&O Premium (Ex IPT)               |                    | £352.65    |

Under this section of cover you have access to radar services, please see your policy wording for details.

#### **Endorsements that apply to this section**

##### **IPI090 Subsidiary amendment**

In the **Meanings of defined terms**, **Subsidiary** is deleted and replaced with the following:

##### **Subsidiary**

Any company that is registered in Great Britain, Northern Ireland, the Channel Islands and Isle of Man where you;

1. Own more than 50% of the share capital
2. Have a majority of the voting rights
3. Have the right to appoint or remove a majority of the company's board of directors
4. Control a majority of its voting rights under a written agreement with other shareholders or members.

If a company ceases to be a subsidiary cover will continue but only for a **claim** caused by a **wrongful act** carried out before it stopped being a subsidiary.

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#### **IPI112 - USA Aggregate Limits**

Under each section of the **policy**, where any cover attaches in respect of United States of America exposure, the **limit of cover** in respect of that exposure is changed to:

The most **we** will pay for all **claims, loss or investigation** in total aggregate brought in the United States of America during any one **period of insurance** including **defence costs** and/or **investigation costs** is the **limit of liability**.

Each **claim** will be treated as made when **we** receive written notice of the claim. **Investigation costs** will be treated as made when attendance of an **insured person** is notified as being required.

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|-----------------------------------------------|--------------------|
| <b>Employment practices liability section</b> | <b>not insured</b> |
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|----------------------------------------|--------------------|
| <b>Company legal liability section</b> | <b>not insured</b> |
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|--------------------------------------------|--------------------|
| <b>Company legal defence costs section</b> | <b>not insured</b> |
|--------------------------------------------|--------------------|

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|--------------------------|--------------------|
| <b>Terrorism section</b> | <b>not insured</b> |
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|                                    |                    |
|------------------------------------|--------------------|
| <b>Equipment breakdown section</b> | <b>not insured</b> |
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#### **Subjectivities:**

N/A

#### **Policy Class Reference**

This is to certify that authorisation is granted under Contract No RG BDX 6962038 to Pen Underwriting Limited by AXA Insurance UK Plc to bind this Insurance.

The Insurer hereby bound will indemnify the Insured to the extent hereafter described in respect of claims first made against the Insured during the Period of insurance, subject to the terms, exceptions and conditions contained herein or endorsed hereon.

#### **Complaints**

At Pen Underwriting, it is always our intention to provide a first class standard of service. However, it is appreciated that occasionally things go wrong. In the majority of cases the agent who arranged the insurance will be able to resolve any concerns and you should contact them directly in the first instance.

Alternatively you can complain by contacting Pen Underwriting Limited (as per the contact details below) quoting your policy and/or claim number. We will investigate your concerns and provide a response as soon as possible.

**Address:**

Pen Underwriting Limited Complaints  
7th Floor Spectrum Building  
55 Blythswood Street  
Glasgow  
G2 7AT  
Telephone: 0141 285 3539  
Email: [pencomplaints@penunderwriting.com](mailto:pencomplaints@penunderwriting.com)

**If you are not satisfied with the response to your complaint**

you can also contact your Insurer, contact details can be found in the schedule.

If we haven't resolved your complaint within eight weeks, or you are unhappy with our final response, you may be eligible to refer your case to the Financial Ombudsman Service (FOS). The FOS is an independent body that arbitrates on complaints about general insurance products. You have six months from the date of our final response to refer your complaint to the FOS. This does not affect your right to take legal action.

**Address:**

The Financial Ombudsman Service  
Exchange Tower  
London  
E14 9SR  
Telephone: 0800 0234567 (for landline users)  
Telephone: 0300 1239123 (for mobile users)  
Email: [complaint.info@financial-ombudsman.org.uk](mailto:complaint.info@financial-ombudsman.org.uk)  
Website: [www.financial-ombudsman.org.uk](http://www.financial-ombudsman.org.uk)

**Our complaints process**

In our experience many problems can be resolved by speaking to the staff directly responsible for the handling of your policy or claim. They will do their best to address the problem and in our experience most issues can be resolved satisfactorily at this stage.

When you contact us we promise to;

- fully investigate your complaint
- keep you informed of progress
- do everything possible to resolve your complaint
- learn from our mistakes
- use the information from your complaint to proactively improve our service in the future.

**Compensation Scheme**

The providers of this insurance as defined in this policy are covered by the Financial Services Compensation Scheme (FSCS). If they cannot meet their obligations you may be entitled to compensation under this scheme depending on the type of insurance and the circumstances of the Claim.

You are covered for 90 per cent of the claim without any upper limit. However, for compulsory classes of insurance you are covered for 100 per cent of the claim without any upper limit.

In the unlikely event of us being unable to meet our liabilities, you may be entitled to compensation under the Financial Services Compensation Scheme.

Their contact details are:

Financial Services Compensation Scheme, 10th Floor, Beaufort House, 15 St. Botolph Street, London, EC3A 7QU Tel: 0800 678 1100 or 44 (0)20 7741 4100